Precedent memo: Wexley Hotels v. Grant

Lane County Circuit Court, decided 2020-07-15 - memo by the employment group

1. Holding

A tip-pooling arrangement that included managers was unlawful and the tips were ordered repaid.

2. Facts

Grant was a server; shift managers took a share of the pool for 2 years.

3. Firm position

We represented Grant. Managers may not share in tip pools.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.